

PRE-INCORPORATION FOUNDERS AGREEMENT

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Agreement Type: Pre-Incorporation Founders Agreement

Project: Trulicon
Effective Date: 2026-06-03

Parties

This Founders Agreement ("Agreement") is entered into between:

Founder 1	Founder 2
Name: Nishit Samar	Name: Naitik Kumar
Email: alloydark9@gmail.com	Email: nishuuuyrr@gmail.com
Address: Bhagwanpur, Muzaffarpur, Bihar, India – 842001	Address: Bhagwanpur, Muzaffarpur, Bihar, India - 842001

Collectively referred to as the "**Founders.**"

1. Purpose

The Founders agree to collaborate in the development, operation, and growth of the project currently known as:

Project Name: Trulicon

The purpose of this Agreement is to define ownership, responsibilities, contributions, and procedures before formal incorporation of the business.

2. Vision and Mission

Project Description

Trulicon is a real-time trust-exchange platform that allows two parties to exchange digital assets atomically without needing to trust each other directly.

Instead of:

- "You send first."
- "No, you send first."

Trulicon synchronizes both sides into a secure vault session where assets remain locked until both participants confirm the exchange.

Once confirmed:

- Both assets are released simultaneously.
- Or nothing happens at all.

This creates a safer and more transparent digital exchange experience.

Core Principle

Two people should be able to exchange digitally without needing to trust each other personally, by trusting the system instead.

3. Founder Roles and Responsibilities

Founder 1

Position

Chief Executive Officer (CEO)
Founder & Technical Lead

Responsibilities

- Product architecture and technical decisions
 - Software development and code quality
 - Long-term vision and strategy
 - Product execution oversight
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Founder 2

Position

Chief Financial Officer (CFO)
Co-Founder & Marketing Lead

Responsibilities

- Financial planning and capital management
- Fundraising and investor relations
- Marketing strategy and growth initiatives
- Business operations support

4. Time Commitment

Founder 1

Expected Weekly Commitment:

Approximately 30-40 hours per week.

Founder 2

Expected Weekly Commitment:

Approximately 25–30 hours per week.

Both founders acknowledge that sustained contribution is expected for project success.

5. Ownership and Equity

The founders agree that ownership shall be allocated as follows:

- Founder 1: 60%
- Founder 2: 40%

Total Ownership: 100%

The parties acknowledge that final share issuance may be adjusted upon company incorporation if mutually agreed in writing.

6. Vesting Schedule

Founder equity shall vest according to the following schedule:

- Vesting Period: 4 Years
- Cliff Period: 1 Year
- Vesting Frequency: Monthly after the cliff

If a founder leaves before the cliff period, all unvested ownership shall revert to the company or founder pool.

7. Contributions

Founder 1 Contributions

- Capital contribution as required
- Technology development
- Product architecture
- Strategic planning
- Other agreed contributions

Founder 2 Contributions

- Capital contribution as required
 - Marketing
 - Design
 - Operations
 - Business development
 - Other agreed contributions
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8. Intellectual Property

All source code, Git repositories, software applications, databases, APIs, documentation, designs, logos, trademarks, domain names, product concepts, inventions, and related intellectual property created for Trulicon shall belong exclusively to the future company upon incorporation.

Each founder agrees to assign all relevant intellectual property rights to the company when requested.

9. Pre-Existing Contributions

All project-related work, source code, documentation, designs, concepts, research, and intellectual property created by either founder for Trulicon prior to the execution of this Agreement shall be considered part of the project and subject to the intellectual property provisions of this Agreement.

10. Confidentiality

Each founder agrees to keep confidential:

- Source code

- Product plans
- Business strategies
- Customer information
- Financial information
- Proprietary company information

This obligation survives departure from the project.

11. Decision-Making

The following decisions require approval from both founders:

- Equity changes
- Fundraising
- Company sale
- Admission of new co-founders
- Mergers or acquisitions
- Company dissolution

Operational decisions may be handled independently by the founder responsible for that area of responsibility.

12. Founder Inactivity

A founder shall be considered inactive if they fail to perform agreed responsibilities for more than ninety (90) consecutive days without reasonable explanation or mutual agreement.

Upon determination of inactivity, the remaining founder may initiate a review process and apply the departure provisions of this Agreement.

13. Founder Departure

If a founder voluntarily leaves:

- Unvested equity shall be forfeited.
 - Vested equity shall remain subject to company agreements.
 - Company assets, credentials, and confidential information must be returned.
 - The departing founder shall cooperate with reasonable transition activities.
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14. Founder Equity Buyback

If a founder voluntarily leaves the project or ceases active participation, the company or remaining founder shall have the first right to purchase the departing founder's vested ownership interest at fair market value or a mutually agreed value.

Unvested ownership shall automatically revert to the company or founder pool.

15. Founder Removal

A founder may be removed in cases involving:

- Fraud
- Criminal misconduct
- Serious breach of fiduciary duty
- Repeated failure to perform agreed responsibilities
- Intentional harm to the company

Any removal process shall be documented in writing.

16. Deadlock Resolution

If the founders cannot agree on a major decision:

1. Internal discussion.
2. Mediation.
3. Binding arbitration.

Both founders agree to attempt good-faith resolution before pursuing legal action.

17. Future Incorporation

The founders intend to incorporate the business under an appropriate legal structure in the future.

Upon incorporation, this Agreement may be replaced or supplemented by:

- Shareholders Agreement
 - Founders Stock Purchase Agreement
 - Employment Agreements
 - Intellectual Property Assignment Agreements
 - Corporate Governance Documents
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18. Governing Law

This Agreement shall be governed by and interpreted under the laws of India.

Signatures

Founder 1

Name: Nishit Samar

Signature:

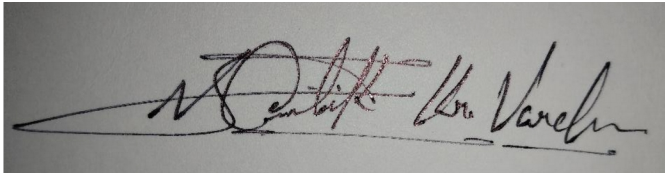
A handwritten signature in black ink, featuring a stylized 'N' and 'S' followed by the name 'Nishit Samar' in a cursive script.

Date: 2026-06-03

Founder 2

Name: Naitik Kumar

Signature:

A handwritten signature in black ink, featuring a stylized 'N' and 'K' followed by the name 'Naitik Kumar' in a cursive script.

Date: 2026-06-03

Witness

No Witness other than founders.
